

Lalla Ji Siyaram Smarak Madhyamik Vidyalaya v. State of U.P. & 6 Others

Allahabad High Court (Lucknow Bench) · Division Bench · 29 July 2024 · 2024:AHC-LKO:51314-DB · Writ - C No. 6440 of 2024 · **Writ petition disposed of; petitioner directed to approach respondent no. 6 by an appropriate application, and may place that order before the Sub-Divisional Officer; no interference with the IGRS report**

HEADNOTE

Where a school writ seeks, besides revenue relief, a mandamus that respondent no. 6 decide a representation, and counsel for respondents 6 and 7 submits that no application has been made in the format prescribed by clause 4.45 of the U.P. Electricity Supply Code, the Lucknow Bench will not decide that grievance. The writ is disposed of by directing the petitioner to approach respondent no. 6 with an appropriate application, and by permitting it to place any order of respondent no. 6 before the Sub-Divisional Officer, Fatehpur, Barabanki. The Court declined to interfere with an Integrated Grievance Redressal System portal report on a construction complaint of 19 June 2024, the petitioner having admitted that the building map was not yet sanctioned. It did not quash the Lekhpal's enquiry report of 12 July 2024, did not permit the construction, did not construe clause 4.45, and did not direct respondent no. 6 to decide the application.

FACTUAL SUMMARY

Lalla Ji Siyaram Smarak Madhyamik Vidyalaya filed Writ-C No. 6440 of 2024 against the State of U.P. and six others in the Lucknow Bench. It sought quashing of the Lekhpal of Baddupur's enquiry report dated 12 July 2024, a direction to respondent no. 6 to decide a representation of 26 December 2023 and 6 January 2024, and permission to construct the school building. On 17 May 2024, Writ-C No. 4430 of 2024 had sent the school to the Land Management Committee, Baddupur. The school said the Committee did nothing, and a revenue official then reported against it.

The earlier order describes Gata No. 1260 Min (0.318 hectare) in Village Baddupur as Gaon Sabha Navin Parti given only for a playground. Construction on it had been stopped. Counsel for respondents 6 and 7 said no application in the format under clause 4.45 of the U.P. Electricity Supply Code had been made against respondent no. 6. The school also challenged an Integrated Grievance Redressal System report on its complaint of 19 June 2024, admitting that the building map was not sanctioned.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.45

grievance against respondent no. 6 left to an appropriate application; clause 4.45 cited only as the prescribed format

QUESTION

Where counsel for respondents 6 and 7 submits that the grievance against respondent no. 6 has not been made by an application in the format prescribed by clause 4.45, will the writ court decide that grievance or direct respondent no. 6 to decide the representation already made?

HOLDING

No. The Court recorded the submission that, so far as the charges against respondent no. 6 were concerned, the petitioner had not moved an application in the prescribed format under clause 4.45 of the U.P. Electricity Supply Code, and that the petitioner should be directed to approach respondent no. 6 with such an application. It disposed of the writ by directing the petitioner to approach respondent no. 6 by an appropriate application, and permitted the petitioner to approach the Sub-Divisional Officer, Fatehpur, District Barabanki, with a copy of any order respondent no. 6 may pass. It did not direct respondent no. 6 to decide the representation of 26 December 2023 / 6 January 2024, fix a time, or reproduce or construe clause 4.45.

¶ 4, 7

QUALIFIER

The operative direction is addressed to the petitioner. It does not order respondent no. 6 to grant or refuse any electricity relief. The liberty to approach the Sub-Divisional Officer is permissive.

FLAG Unnumbered three-page order of 29.07.2024. Paragraph pins are sequential blocks of this order, not of the quoted order: (1) appearances; (2) prayers; (3) sequel to Writ-C No. 4430 of 2024 and the 12.07.2024 enquiry report; (4) respondents 6 and 7 on clause 4.45; (5) quotation of the 17.05.2024 order, which has its own paras (1)-(7); (6) IGRS report, interference declined; (7) operative direction. Clause 4.45 is named only in counsel's submission. Section 67 in the quoted 17.05.2024 order is Section 67 of the U.P. Revenue Code, not section 67 of the Electricity Act, 2003. The prayer as printed says 'building wark'. No Indian Kanoon doc-id is in the fingerprint.

PRINCIPLE TAGS

relegate-to-statutory-remedy On counsel's submission that the grievance against respondent no. 6 had not been made in the format prescribed by clause 4.45 of the U.P. Electricity Supply Code, the writ was disposed of by directing the petitioner to approach respondent no. 6 with an appropriate application. The Court did not decide that grievance. ¶ 4, 7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHAT THE REPRESENTATION OF 26 DECEMBER 2023 / 6 JANUARY 2024 ASKED OF RESPONDENT NO. 6, AND WHETHER CLAUSE 4.45 ENTITLED THE PETITIONER TO ANY ELECTRICITY RELIEF
Left to an appropriate application before respondent no. 6. The Court did not set out clause 4.45 or direct that the application be allowed or rejected. ¶ 2, 4, 7

NOT DECIDED — QUASHING OF THE LEKHPAL'S ENQUIRY REPORT DATED 12 JULY 2024
Prayer (i). The report was not quashed. The writ was disposed of without a fresh direction to the Land Management Committee. ¶ 2-3, 7

NOT DECIDED — WHETHER CONSTRUCTION ON GATA NO. 1260 MIN SHOULD BE PERMITTED, AND THE CORRECTNESS OF THE INTEGRATED GRIEVANCE REDRESSAL SYSTEM PORTAL REPORT ON THE COMPLAINT OF 19 JUNE 2024
Interference with the portal report was declined because the petitioner admitted that the map submitted for construction had not been sanctioned. The legality of the construction was not tried. ¶ 6

NOT DECIDED — ENCROACHMENT ON GATA NO. 1260 MIN AND ANY APPLICATION UNDER SECTION 67 OF THE U.P. REVENUE CODE
Recorded only inside the quoted order of 17 May 2024 in Writ-C No. 4430 of 2024, as the observation in Public Interest Litigation No. 370 of 2024. Not decided in this writ. That section is of the Revenue Code, not the Electricity Act. ¶ 5

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Lalla Ji Siyaram Smarak Madhyamik Vidyalyaya v. State of U.P.</i> Writ-C No. 4430 of 2024, order dated 17 May 2024 Allahabad High Court (coordinate Division Bench)	Quoted in full. The coordinate Bench declined to quash the Land Management Committee notice dated 3 May 2024 and directed the school to approach that Committee, which was to consider its reply of 4 May 2024 strictly in accordance with law. The quotation records that the land is Gata No. 1260 Min (0.318 hectare) in Village Baddupur, Gaon Sabha Navin Parti said to have been given only for a playground.		Court	Referred
<i>Sahajram Verma v. State of U.P. and others</i> Public Interest Litigation No. 370 of 2024 Allahabad High Court	Named only inside the quoted order of 17 May 2024. Counsel for the respondents in that writ pointed out this PIL, filed for removal of alleged encroachment on Gata No. 1260 Min. The Court there observed that the		Court	Referred

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
	complainant had a remedy under Section 67 of the U.P. Revenue Code, to be decided within 90 days after hearing all concerned, including the alleged encroacher. This Bench did not separately apply that order.			